

2017 SCC OnLine All 2112

In the High Court of Allahabad
(BEFORE MAHESH CHANDRA TRIPATHI, J.)

Mahboob Ahmad Petitioner

v.

Commissioner, Moradabad and Another
Respondents

Writ - C No. - 39224 of 2017

Decided on September 14, 2017

Counsel for Petitioner:- Mohd. Aslam Khan

Counsel for Respondent:- C.S.C., Pranjali Mehrotra

The Judgment of the Court was delivered by

MAHESH CHANDRA TRIPATHI, J.:— Mahboob Ahmad, son of Ayyub Ahmad is before this Court assailing the order dated 16.6.2017 passed by the Chairman/Commissioner, Moradabad Division, Moradabad in Electricity Appeal No. C-201613001184 under Section 127 of Electricity Act, 2003 so far as the recovery of amount of Rs. 17,520/- is concerned and for direction to the respondents not to recover the amount in dispute from him.

2. Record in question reflects that the petitioner has a valid electricity connection and is paying the electricity bill regularly. The petitioner filed a complaint before the second respondent i.e. Commissioner, Moradabad Division, Moradabad on 25.4.2014 regarding irregular electricity supply on account of which the Executive Engineer lodged the first information report against the petitioner on 15.07.2014 and the same was registered as Case Crime No. 335 of 2014 under Section 135 of Electricity Act, 2003, Police Station Chandpur District Bijnor. Against the said FIR, the petitioner had preferred Criminal Misc. Writ Petition No. 13083 of 2014 and the same was disposed of on 4.8.2014. Thereafter an amount of Rs. 73,920/- was quantified by the second respondent on 15.11.2014 by way of assessment under Section 126 of the Electricity Act 2003 and the notice was sent to the petitioner for depositing assessed amount in question. When the said amount in question was not paid within time frame provided for, recovery proceedings has been initiated.

3. Thereafter on 14.10.2015 the recovery certificate was sent to the Collector, Bijnor for recovery of the said amount from the petitioner as arrears of land revenue. Against the said recovery certificate, the petitioner had filed Writ C No. 4004 of 2016 (*Mahboob Ahmad v. Electricity Corp. Ltd.*) and a Division Bench of this Court had proceeded

to dismiss the writ petition on 05.2.2016, giving liberty to the petitioner to challenge the same before the Competent Authority under provisions of Electricity Act, 2003 read with U.P. Electricity Supply Code 2005. After the order dated 5.2.2016 the petitioner filed an Appeal under Section 127 of the Electricity Act, 2003 and the said appeal has been decided by the impugned order, asking the petitioner to deposit Rs. 17,520/- only.

4. The Court has proceeded to examine the record in question and finds that admittedly in the present matter the FIR was lodged against the petitioner and an amount of Rs. 73,920/- was quantified on 15.11.2014 by way of assessment. The assessment was assailed in the appeal and by the impugned order dated 16.6.2017 the said amount has been reduced to the tune of Rs. 17,520/- only and as such, the Court is not inclined to interfere in the matter.

5. Once the Court has declined to interfere in the matter, then learned counsel for the petitioner prays that some reasonable time may be accorded so that the amount in question may be deposited.

6. In the interest of justice, the present writ petition is disposed of asking the petitioner to deposit the outstanding amount of Rs. 17,520/- within three months from today and deposit the electricity bills regularly on time.

7. This order has been passed with due assistance of Shri Pranjal Mehrotra, learned counsel appearing for the respondents.

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